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The Yale Political Quarterly

An Undergraduate Publication

VOLUME 20, NUMBER 2, DECEMBER 1998

FOUNDED 1979

Yung-Hsiang Kao

Piracy in the Digital Age

Steve Holochwost

Commentary: The Public School Crisis

Katie Harrington & Mary Tolman

The 104th U.S. House on Term Limits

Christina Bost & Josh Chafetz

Book Reviews:

William Odom's

The Collapse of the Soviet Military

Akhil Reed Amar's

The Bill of Rights: Creation and Reconstruction

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Where Have All the Pirates Gone?

Piracy in the Digital Age

Yung-Hsiang Kao

Yale University Press recently published a book on Sir Francis Drake that describes the life of a man who became a pirate, financed by Queen Elizabeth I.[1] We may wonder why there are no longer any pirates like Drake. Yet, actually, in our times, pirates still exist. The pirates of today deal not with seafaring, but with digital technology. Computer software, movies, and music are some of the most pirated items today. New advancements in digital technology combined with broad access to online resources that help promote pirating have led to a recent backlash against these technologies.

On October 1, 1998, President Bill Clinton issued an executive order to curtail software piracy. Surprisingly, however, this order was aimed at the U. S. government itself, the largest buyer of computer software and goods in the world. Each year the government buys computer related supplies worth over $20 billion.[2] Apparently, the amount of piracy that occurs within the government is at a proportional level. The Department of Defense last conducted a major audit in 1993 and found "just over half of the 1,022 computers checked had questionable software installed."[3] In fact, one estimate indicates that pirated software in the U.S. accounts for 25% of total software.[4] In 1997, software piracy world-wide resulted in losses of some $11 billion.[5] Annual estimated losses in the U.S. are $2.7 billion.[6] Domestically, some 130,000 jobs were lost to software piracy.[7]

The executive order directs the federal agencies to implement internal reviews of the software on their computers. No exact method is stated in the order, however. "Each agency shall adopt procedures" and "establish procedures" to combat software piracy.[8] Methods suggested in the executive order are mostly clerical, concerning record keeping and itemizing of software used. A major purpose of this order is to make federal workers aware of the laws against piracy. The hope is that, once aware, workers will refrain from making personal copies of office software for home use. "The message is clear: Don't copy that floppy," said Vice President Al Gore. "At home or abroad, intellectual property must be protected."[9]

The ease with which any ordinary citizen can pirate software makes it difficult to combat piracy. Many of us probably use pirated software on our computers. A master disk can be borrowed and copied on to a hard drive. CD-ROMs were thought to hinder the ability to pirate software programs, but the advent of large multi-gigabyte disk drives, recordable CD-ROMs, and CD-R drives, made pirating easier than ever. A company can buy one Windows 98 CD-ROM and copy it onto every computer in the office. Then, it can also manufacture its own Windows 98 CD-ROM and distribute or sell it, without Microsoft

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knowing.

The Business Software Alliance (BSA) has a role to play here. The BSA is a body made up of some of the world's major software developers. It is a political force that lobbies for its members before the international community. Formed in 1988, its reach extends to 55 countries.[10] The BSA, in the words of its president and CEO, Robert Holleyman, "educates computer users on software copyrights; advocates public policy that fosters innovation and expands trade opportunities; and fights software piracy."[11] Among its members worldwide are Microsoft, Novell, Symantec, Lotus Development, and Adobe. A separate Policy Council includes IBM, Compaq, Intel, and Apple Computers.[12]

On June 18, 1998, auditors from the BSA visited the Engineering Design Group. It found unlicensed copies of Autodesk and various Microsoft programs on the company's computers. The BSA then sued the Engineering Design Group. A settlement was reached in September whereby the "pirates" had to pay a fine of $324,000, plus delete the illegal software and purchase replacement software.[13] Some 500 BSA investigations will have been conducted by the end of this year, but the total number of cases of piracy is much greater.[14] Another software protection group, the Software Publishers Association (SPA), is made up of both large and small companies. It's membership of over 1,200 companies make up 85% of U.S. revenue for packaged and online software.[15] However, the SPA rarely fines the pirates it sues. Advocating education and preventing further acts of piracy, fines are used by the SPA as a "last resort."[16]

Some have argued that Clinton's executive order lacks teeth. The critics say that the act only serves to appease the high-tech computer industry. Political action groups, candidates, and parties have received a whopping $5.4 million (a little less than the amount of contributions from the tobacco industry) since January 1997 from the high-tech computer industry.[17] Still, software piracy is a serious issue. An excess of software piracy leads to higher priced software. In turn, the higher the price of software, the more likely people will attempt to obtain pirated copies. A vicious cycle is set in motion, so intervention is necessary to help a prosperous, fast growing industry to maintain itself.

The House of Representatives did exactly so, on October 12, 1998, when it unanimously passed a bill, approved by the Senate the week before, protecting copyrighted material from Internet pirates.[18] Called the Digital Millennium Copyright Act of 1998 (H.R. 2281), it allows the online industry to grow by protecting Internet Service Providers (ISPs) from copyright infringement lawsuits. The bulk of the liability will fall on the owners of web pages that contain pirated materials. Cooperation between the ISPs and web page owners to "notice and take down" content that is illegally obtained, transmitted, or posted on the web is a major part of the bill.[19] The bill is a compromise between the copyright owners, (writers, musicians, Hollywood producers, etc.) ISPs and the telephone industry.[20] Treaties signed at the World Intellectual Property Organization in Geneva back in 1996 will be implemented in the bill. In those treaties, vagueness of wording would have implicated the ISPs for any sort of copyright infringement,[21] but with the help of U.S. Patent and Trademark Office commissioner Bruce A. Lehman, also an assistant secretary of commerce, the bill was made workable for all parties involved. Lehman's efforts and the bill were praised by the computer industry, including Holleyman of the BSA.[22]

The pirates of today deal not with seafaring, but with digital technology.

The Digital Millennium Copyright Act

makes it clear that the Internet is also subject to international copyright laws. It seeks to reduce the proliferation of copyrighted material over mass audiences via the Internet by striking at the root of the problem. It makes the owners of web pages responsible for the material on their pages. The ISPs have the job of informing their users of the new laws and are responsible for shutting down pages that blatantly pirate copyrighted materials by piracy. The "fair use" principle, which allows schools, libraries, and other educational causes to make "limited copies of copyrighted works," still applies to the online community, however.[23]

In the international marketplace, advances in technology have allowed crime rings to profit from pirating various forms of media.

In the international marketplace, advances in technology have allowed crime rings to profit from pirating various forms of media. Video games, CDs, computer software, represent only a few. Perhaps the most serious is the pirating of movies, especially in Asia. My personal observations while in Taiwan and Singapore confirm this fact. New CD technology allows even the layman to press thousands of CDs of good quality without spending much money. Video Compact Discs (VCDs) and Digital Video Disks (DVDs) can all be made cheaply and efficiently. Two summers ago, I went to see John Woo's "Face-Off" when it had just come out in American theatres. A week later, I was in Taiwan and Singapore, and in both places pirated VCDs of "Face-Off" were being sold in many open-air street markets. The movie had not come out in Asia at that time, and furthermore, VCDs and DVDs of movies that had not even appeared in theatres in America were available in these stores. The rationale is, if a person could buy a pirated VCD for a couple of dollars before the movie even came out, he would not pay to go to a theatre. This unchecked piracy is one reason, and probably the major reason, that cinemas in Hong Kong and many other Asian countries are struggling. No one will pay to watch a movie in a theatre when he can pay less and own the movie to watch whenever he wanted. The mob influence and corruption in these areas will make this problem difficult to stop.[24]

The record industry faces a similar problem. Individual songs as well as entire albums can be transferred through the Internet with MP3 technology. MP3, which stands for MPEG 1 Layer 3, is a digital audio standard that compresses music data for quick and easy transfer. Uploading and downloading an MP3 takes a fraction of the time an uncompressed music data file takes. MP3 allows a user to copy an audio CD onto their hard drive, compress it, and send it to a friend via the Internet. Most of the people who use this mode of audio consumption through computer speakers are high-tech, high end computer users and college students who have high-bandwidth Internet connections.[25] While there are legitimate sites that offer MP3s for download, there are thousands of sites that contain pirated songs available for free download to the online community.[26] The Recording Industry Association of America (RIAA) pressured Case Western Reserve University to shut down a student-run site on October 13, 1998. The site, called the Cure MP3 Audio Archive, contained hundreds of pirated recordings available for download. Still, even big name performers such as the Beastie Boys and Frank Black have songs legally made available to the public via MP3.[27] Moreover, it is difficult for a MP3 downloader to avoid downloading pirated music since it is impossible to tell which songs have been legitimately made available and which have not.

Recently a newer technological advancement (and problem) surfaced that deals with MP3 technology. The Rio, a hand-held device created by Diamond Multimedia Systems Inc., angers the RIAA. The Rio, which will cost around $200, al-

lows owners to download MP3s onto the Rio for portable playback.[28] Using flash-memory chips, the Rio can store an hour's worth of CD-quality music.[29] Obviously, the RIAA knows that the Rio can be used to download not just pirated material, but legitimate material as well. The RIAA filed a lawsuit on October 9, 1998, against Diamond, on the grounds that the Rio was not in accordance with the Audio Home Recording Act of 1992. One aspect of that law was that digital recording devices had to have mechanisms that inhibited the creation of "second-generation copies."[30] A temporary restraining order was granted. However, on October 26, 1998, Los Angeles Federal Judge Audrey B. Collins ruled that the Rio does not violate the 1992 law because it cannot digitally upload music onto a computer or copy music to another Rio. Thus, a piracy-prevention device is unnecessary.[31] Yet, the RIAA does have a case when it says that the Rio might promote online piracy of music. If an entire album that costs $16 in a store can be illegally downloaded for free, some people will do so, and "these are people who would never think of shoplifting a CD from Tower Records," said RIAA senior executive vice-president Cary Sherman.[32] There is a real incentive to pirate if one can listen to MP3s on a portable machine rather than on the computer. That does not, however, mean that new technology should be prohibited.

What, then, should be done about such new technologies? As the technologies have become more powerful, piracy has flourished. Still, technologies need free reign to grow, as it is the ones who abuse the new technology that need to be controlled. True, today's pirates are more difficult to fight since they break the law while in their own homes without anyone able to oversee them. The consumers of pirated products encourage the growth of this industry. International law allows piracy to be punished. To combat it, nations need to crack down on violators to the fullest extent. As Bob Kruger, vice president for enforcement of the BSA, says, "We have to make it more expensive to copy software than it is to buy it in the first place."[33]

President Clinton is making some first steps to combatting piracy worldwide. He directed the United States Trade Representative Charlene Barshefsky to work with software companies to combat piracy in other nations. By making foreign governments conduct internal audits, modernize their facilities, and purchase non-pirated software the problem of piracy may diminish at least a little.[34] Mexico is already trying to follow suit. On November 12, 1998, in an effort to bolster its economy, Mexico introduced *The National Campaign Against Piracy*. The bill includes provisions for strengthening existing copyright laws, especially those pertaining to intellectual property, improving inspections procedures and enforcement of the laws, and making the public and government representatives aware of piracy laws.[35] Stronger international laws and the breaking up of crime rings must also play their part before more notable results can be seen. For now, important first steps have been taken.

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Commentary: An Education In Empathy

Steve Holochwost

While riding to a nearby mall, my friend had overheard a man talking about how he couldn't get a job because it required a uniform that cost $150.00. The thought that someone couldn't get a job because they could not afford the uniform surprised, and indeed, upset her: "I just couldn't understand where they were coming from. I mean, $150 is a lot to me now, but to my parents..."

I think that the reason that my friend couldn't fathom this fact—and similar examples abound—is that she attended a private school. The preceding statement requires numerous qualifications. I am not implying that my friend is apathetic; quite the contrary, she is involved in numerous volunteer activities. Many people who go to private schools are sent there by parents for whom private school tuition represents a tremendous stretch and sacrifice. Many of our parents have made a similar sacrifice to send us to Yale.

But there is a fundamental flaw in the system, a crucial part of education missed by attending private school. No college is representative of society at large. At any college, you've already excluded the portion of the population that could not afford college, had no desire to attend, or was not granted admission. At college, you are much more likely to be with people of similar backgrounds, interests, or ambitions as yourself. Public school is not like that at all.

Public school is a microcosm of society. There are students from all walks of life: ethnicities, upbringings, family situations, and economic backgrounds vary widely. The highest income brackets are becoming underrepresented, but the feel of a true picture of the world is still there. Exposure to this atmosphere is perhaps the most important part of an education. It is an education in empathy.

Perhaps some examples would serve to illustrate my point. I went to a public high school in a middle income district. By this I mean a district with families that made a considerable amount of money, and families that made very little. The parents of my classmates were about half white collar, half blue collar. The school was by no means located in a city, and therefore experienced a trade-off between less violence in exchange for no federal special program funding offered to inner city schools.

In my four years of high school I saw many things. In the bathrooms, students would commonly shoot heroin between classes. My freshmen year crush got pregnant at fourteen; pregnancy in general was not uncommon. I had friends that were abused by their parents. Many of my classmates had single parents. Many of my friends went to college and dropped out. One that became a heroin addict never made it to college, and has spent three years in and out of rehab. Three students I knew since I was ten went to jail. One killed a man in a robbery attempt.

Steve Holochwost is a sophomore in Calhoun College.

Obviously, none of these things are good. But in no way were they confined to my high school walls. Indeed, there are many public schools where physical safety is an issue, and that was usually not the case with regards to mine. It is the propagation of these problems, and ones far worse, that is the issue at hand. These problems are the problems of our society.

And that is why it is imperative that the current trends in education do not continue. It is of the utmost importance that those who will be thrust in the position of leading and helping those less fortunate than themselves have some experience in interacting with people of different walks of life. In this way they can better understand the problems, and in addition, will have much more impetus to help improve their condition, because they would have experienced life with them. Very little makes one want to end heroin addiction more than watching a friend ruin his/her life using it.

The course is clear. I feel that it is imperative that all children attend public schools. The question is, how can anyone reasonably expect a parent to send his or her child to a public school if on top of worrying if their children are being taught properly, they worry if their physical well being is in danger, through exposure to drugs or from violence. Obviously, because we can't expect that, parents spend millions of dollars a year sending their children to private schools.

Teachers are given the tools necessary to teach, but not the tools necessary to cope within an often ambiguous and difficult environment.

Of course, the solution is not to be angry at the fortunate. Everyone wants the best for their children. But the situation would be different if the public schools were good enough that all children could attend them, and receive an excellent education. That way, students could receive a complete education, in the academic disciplines now so lacking in public school, and in learning how to be surrounded by, and in accepting those different from one self, an element missing in private schools.

We now come to the crux of the situation— how to repair a broken system of public education. There are so many avenues to pursue that it is staggering. However, there is one change that could be made that would go very far towards improving education in America. Rather than engage in vague rhetoric, such as the *Goals 2000* agenda which mandates that "every student come to school ready to learn,"[1] a real solution involves adjusting the system with regard to the way that teachers interact with, and are seen by administrators.

Despite my best efforts, I cannot readily think of a profession that is more important than teaching. Second to parents, teachers may have be the most influential people in the life of a growing child. However, teachers generally are relegated to the bottom of the school hierarchy. There are two reasons for this. Teachers are not trained properly for their work, and as a by-product of this lack of training, they do not assume the proper roles within the public school system.[2]

First, the issue of training: teachers are professionals. Most professionals work within the constraints of a system; in the educational scenario, this system is the school. However, teachers are never taught how to function within a system. Their manners of teaching cannot be expected to all be the same. Indeed, teachers often do not agree on exactly how their roles within a school are defined,[3] because they are never taught these things. They are given the tools necessary to teach, but not the tools necessary to cope within an often ambiguous and difficult environment.

This would lead one to believe that teachers need more education. While teacher's preparatory programs exist in many schools, and in

most states teachers must be certified, this tandem misses the point in some respects. Arguments for a better mastery of their subject materials aside, there should be programs available that instruct teachers about functioning as members of a larger scheme, and the obstacles and frustrations involved in such an endeavor. At the same time, these programs should instruct teachers on how to craft curricula that suit their manner of teaching while still abiding by state guidelines.

In this manner two goals are reached. First, and most importantly, teachers feel greater satisfaction in their work. They are able to function as a part of a larger whole, while retaining the individuality and freedom that any professional desires. They don't become faceless cogs in a machine seen as stifling of creativity and dynamism. At the same time, by allowing teachers to structure curriculum, the need for administrative interference, and indeed, the number of administrators on the whole, is reduced.

Administrators are important to the proper functioning of any school. However, too often the proper bounds of their domain, complying with state-mandated regulations, are overstepped. When this occurs, they begin to encroach on the territory of the educator. This is harmful for a number of reasons. First, the teacher's relation with the intruder becomes adversarial relationship. Second, people who are not meant to be involved directly with the teaching of students begin to dictate terms that lie within the teacher's domain, without knowledge of the material or the students.[4] Finally, as the teachers begin to see themselves as more removed from the education of their students, they begin to lose a sense of accountability for the outcome of their students' education.[5]

One solution would be elegantly simple. In some schools, instead of having a supervisor for each subject, the most senior member of a department serves as a department head.[6] This person embodies a unique union of leader to his or her fellows, while at the same time not being so far removed from teaching as a true supervisor. In this manner, the teachers feel they are benefiting from the experience of a peer that understands their position, while at the same time a worthy reward is bestowed upon a dedicated faculty.[7]

This fundamental shift in the way that we view teachers and their role in the public education system would have a domino effect. With the position of teacher being rightly elevated, more able people would enter the profession. As teachers improved, so would their students, both in interest and ability. A truly in depth involvement at school would eliminate much of the idle time that plagues today's youth. Many sociologists and criminologists have noted that the majority of youth crime occurs not late at night, but in the hours between school ending and parents returning from work. As the effects of the system compound upon themselves, it becomes clear how a minor change can have the most far-reaching implications for the future of our nation.

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The Impact of Term Limits on the House Seniority System: An Analysis of the 104th U.S. House

Katie Harrington and Mary Tolman

The term limit question is one of the most controversial issues in the United States Congress to which the media has recently spent much time and energy analyzing the possible effects of. Experts offer their opinions on term limits within the legislative body, but in fact, consultation with those most closely impacted by such a policy change would yield much more insight regarding the advantages and disadvantages of term limits. As such, the current members of the U.S. House of Representatives are those most likely to understand the implications on the institution.

Critics argue that term limits will add more inexperienced legislators who are unable to carry out the important duties of elected office. However, a series of member interviews revealed that in reality, many members oppose term limits because they foster inexperience, allow for deference, and shorten the learning process. Although some members expressed support for term limits, many also insisted that the consequences of term limits would adversely impact the congressional committee system.

Term limits have a profound effect on the congressional seniority system, which adds stability as well as predictability to legislative behavior. Term limits would alter or even destroy the seniority system, the cornerstone of committee government. The seniority system is an unwritten rule in Congress that creates an informal committee hierarchy in which the most senior members of the majority party is granted the chairmanship.[1] The most common form of term limits mandate those members to serve a set number of years in office before required retirement. Term limits may disrupt the effectiveness of the seniority system and thus pose a threat to institutional authority.

Katie Harrington and Mary Tolman are contributing writers from Baker University.

Seniority System

Since 1910, the U.S. House has employed the seniority norm when selecting committee chairs. As a result, junior members mainly kept "quiet and work hard on less important matters while waiting to become senior."[2] Thus, "those individuals with more experience are likely to have more influence."[3] However, although this may have been the tendency in the past, the seniority system is weakening and has less of an impact than in earlier decades, possibly due to an increased turnover of House members.[4] While it is only natural that more senior members are able to secure more support for bills and gain more respect from peers, junior members can obviously still be effective legislators. Despite this, the seniority system still retains a large impact on the

committee system.

There are four main arguments against the seniority system. First is the creation of a "generation gap into congressional decision making which gives great power to those least likely to be attuned to contemporary needs." Second, the seniority system leads to "one-party areas of the United States having an unfair advantage to representation along with rural and conservative beliefs." Third, it "caters to congressmen from safe districts where elected officials can be 'out of step with current party programs'" Finally, the seniority system creates a large, independent power center outside of party control.[5]

On the other hand, "seniority rule rewards age and continuous service in a body that prides itself on its long traditions and continuity,"[6] and helps support the "decentralized character of leadership in Congress, which protects the diverse interests of the member and strengthens Congress's independence of the Presidency."[7] By dispersing power down to individual committee leaders, the seniority system prevents individual party leaders from controlling the legislative process. Thus, the seniority system "offers stability in the distribution of influence. It offers predictability concerning who has power in what area."[8]

Other scholars have noted that the seniority system also helps to promote harmony among legislators because it designates who will receive chairmanship. Representatives know they have to wait their turn, and thus few power battles result. "As a result, it helps to create a more cooperative atmosphere, both in the legislative body as a whole, and on the various committees."[9]

While the effect that term limits would have on the committee system is unknown, some believe that it would create a better meritocracy, where "a Congress purged of its most senior members would be able to select its leaders and committee chairmen on a rational basis, choosing those with talent and leadership qualities rather than those with the greatest staying power . . . There would be more competition for leadership posts and key committees. Ideology would count more than loyalty to old bull legislators'."[10]

Thus, it appears that the seniority system would be greatly effected by term limits, particularly affecting the traditional seniority system within the House.

Term Limits

Term limits formally constrain congressional service to a set number of continuous years in office. Some scholars argue that term limits will help make politicians more accountable to their constituents, decrease careerism, and encourage new ideas from elected officials.[11] Others argue term limits will promote political novices to important political positions[12] since it takes time to learn the job of a legislator, and gain knowledge and respect to be an effective leader.

As some scholars argue, it is possible that the advantages of term limits greatly outweigh the disadvantages.[13] First, the current system makes it impossible for individuals to actually make a difference in Congress since freshmen need to "outlast the current leadership of Congress and the committee chairmen in order to gain the seniority necessary to affect policy."[14] Second, this can deter potentially qualified representatives from running because the system favors more senior members: "If terms were limited, talented people, sure of policy influence in a few years, would be encouraged to run for office."[15] Third, membership replacement is necessary because "many of the long-time incumbents they would replace....clearly

As some scholars argue, it is possible that the advantages of term limits greatly outweigh the disadvantages.

suffer from 'burnout,' yet they enjoy the power, prestige, perks, pensions, not to mention income, of politics."[16] Finally, a member's seniority status does not guarantee effectiveness, as " . . . experienced legislators have failed ...to reach budget decisions, improve transportation, provide decent education for our children, produce clean air, eliminate crime from our streets, or manage the bureaucracy."[17] Other scholars suggest that legislators who are only permitted to hold office for a certain number of years are more likely to listen to their constituents than those officials who make a career out of politics.[18]

Conversely, there are advantages to maintaining the current system, such as the fact that term limits snatch away the constituents' right to choose their own delegate, by prohibiting them from re-electing senior members of Congress. Finally, term limits would eliminate the most highly experienced politicians. Those who do not support term limits believe there are great disadvantages to implementing tenure restrictions. In "Bad Housekeeping; The Case Against Congressional Term Limits," Kesler states that "the gradual professionalization of Congress owes something to the gradual increase of power in Washington, which made it more attractive to hold office; and still more to the seniority system. With the seniority system in place, districts had great incentives to keep their representatives serving continuously."[19] Furthermore, Kesler asserts that limiting a member's tenure will promote bureaucratic authority over congressional power. "If anything, these new congressmen will find themselves confronting bureaucrats rendered more powerful by the representatives' own ignorance of the bureaucracy; for in the administrative state, knowledge is power. It is likely, therefore, that the new congressmen will initially be at a disadvantage relative to the agencies."[20]

Others assert that "without seniority, and with few rewards for loyal members, leadership will become at best symbolic and at worst irrelevant."[21] The legislature was designed to be a slow process so as to avoid rash decisions: "Legislative change is a gradual and often long process. Policies are usually formulated over a period of years, not months—a process that helps to ensure they are sensible and sound. The seniority system is based on patience, and members have to wait their turn for power."[22] Thus, term limits will force elected officials to act quickly in the policy making process, since "a term-limited member of Congress won't have time to be patient. With only few years to serve, he or she will want it all, right away."[23]

Thus, while a split of opinions exists, both supporters and detractors admit that term limits would impact the way Congress operates. An examination of member interviews could therefore better illustrate the effects that term limits may have on the seniority system in Congress. The seniority system is the cornerstone of the committee system. In order to fully understand term limits, we must assess the impact that they will have on the institutions of government, namely the House of Representatives.

In the past, research on the congressional seniority system has neglected the issue of term limits. To overcome this void in the literature, this question was examined through an analysis of members of the 104th House. The interviews for this study were undertaken in May 1996 as part of a larger study examining the diminishing importance of the seniority system in the House of Representatives.[24] The interviews included twenty-three House members with varying party affiliations, tenure longevity, and leadership status.

According to various members of Congress, term limits would impact the effectiveness of the legislative process in two ways. First, members believe it takes a couple of years to learn their job and establish themselves in the House and

term limits would exasperate this process. Second, senior members generally have more knowledge, experience, and expertise than junior members, which leads junior members to defer to more senior members. Term limits would reduce member expertise by eliminating specialization.

First, five-term congressman Scott Klug (R-WI) contends that it takes a couple of years for a member of Congress to adjust to new surroundings. In addition to becoming familiar with the congressional environment, a member has to fulfill many informal duties as well.

> ... I think the first two years really go by like a blur. Because unless you worked as a chief of staff, if you came from any other background, even the state legislature, it just takes you a good year to find the bathrooms, how to run the budget, get your staff on board, get everybody on the same page.

Klug goes on to explain that once a member has gained enough seniority to acquire clout within the system, he or she will become more involved and take on more responsibilities. Term limits, in essence, would destroy this feature of the current system.

Dan Burton (R-IN) agrees that members undergo a learning process. New legislators not only have to learn their formal duties, they also must learn about the people with whom they work.

> ...It's hard to understand and learn all the rules and regulations of the House, the way the house works, what the political facts of life are as far as moving legislation in the first year. You can't do it in the first year, first two years, first four, maybe even the first six years . . . It takes a little time when you've got 435 members. It takes a little time to learn the system, it takes time to learn the rules of the House. And all of that, I think, would lead me to believe that a person ought to have a little seasoning before they become a committee chairman. So I think that there's some good reasons to have a quote-unquote seniority system.

Representative Clement (D-TN) concurs with Klug and Burton, adding that the job of a congressional member is extremely time consuming and requires a person who knows all of the possible avenues for information. He asserts that the longer a member is in office, the more effective he or she is.

> ...it takes a while to learn your job. When you're involved with the federal government, or with government in general, particularly as a U.S. congressman, every day there's new issues, or more issues that you're faced with. Whether it be education or foreign policy or national defense or transportation. It's endless.

Representatives Klug, Burton, and Clement all suggest that a member must become familiar with the inner workings of the institution before they can become effective policy makers. Term limits would disrupt the policy making process by increasing legislative turnover and thus, disturb the continuity of the committee system.

The second disadvantage of institution term limits concerns its impact on the level of knowledge, experience, and expertise that members possess. Members argue that expertise comes with seniority, and the longer a member has been in office, the more likely it is that he or she will gain knowledge and experience to make him or her an effective legislator.

For example, Billy Tauzin (R-LA) believes he has gained a lot of experience in his sixteen years that would have been interrupted by

term limits.

> The longer you stay, obviously, the more adept you are at getting things done, and understanding the process. And the more you learn, if you're just smart enough to open your eyes and ears a little bit. So I assume in 16 years I've learned a little bit. I'm more capable of getting things done than when I was a freshman. I think that's true for anybody.

Like Tauzin, Representative Obey (D-WI) believes that with tenure comes experience and expertise. "As I rose in seniority and had more responsibilities, you focus in those areas of responsibility. But you also broaden your experience as well.... So you specialize but you also need to branch out and cover more fields." Representative Obey fears that term limits may restrict specialization, an essential feature of a large congressional body.

Since most House members serve on more than one committee and several sub-committees, they tend to find a policy area of interest in which to specialize, and with specialization comes member deference.[25] Bob Livingston (R-LA) believes that deference is an important feature of a seniority-based committee system. If term limits were invoked, there would be few specialists in which to defer because no one would be permitted to retain their job long enough to establish expert status.

> There are times when some members will vote early on particular types of issues...defense, foreign policy or anything else, that a lot of other members who don't know as much about it will automatically look up there, find the name, see how they voted and vote that way. Because they know they can trust their opinion.

Sam Brownback (R-KS) illustrates this point, admitting that he defers to more experienced members whenever the situation applies.

> I get to points where you defer to somebody's knowledge. If they know a situation, whether they be a committee chairman or somebody outside that really truly knows the situation, or a member on the other side of the aisle that's been around. You start deferring to their knowledge if they know it better.

Expertise and knowledge are essential to the committee system, and the seniority norm provides both. The adoption of term limits and thus, the elimination of the seniority norm, could eliminate institutional specialization. The interview data indicates that members are supportive of the two attributes that make the seniority system a dominant feature of committee work.

In sum, installing term limits would drastically affect the United States House of Representatives and would have detrimental effects on the House Seniority System. The representatives interviewed as part of a larger project conclude that term limits would impact the House in critical ways, including the issues of job experience, knowledge assimilation, and deference.

Although there may be benefits to instituting term limits, they would certainly adversely impact the congressional committee system. Champ Clark explains why the seniority system is important to the House. He suggests that in all careers, people cannot jump into a high-ranking position without first learning and perfecting their job.

> No sane man would for one moment think of making a graduate from West Point a full general, or one from Annapolis an admiral or one from any university or college chief of a great newspaper, magazine or business house. A priest or a preacher who has just taken orders is not

immediately made a bishop, archbishop or cardinal. In every walk of life "men must tarry at Jericho till their beards are grown" (Clark, in Clark, 178).

It is true, that "in no other place, perhaps, does seniority or length of service carry so much weight as it does in the Congress of the United States" (Clark, 178). Yet, there is still support for term limits for two main reasons, including impetus for fresher ideas, and bringing in new people. However, close analysis reveals that many members of the 104th House believe that term limits will have a detrimental effect on the institution by dismantling the seniority system.

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* The data for this study was collected by Dr. Judd Choate, assistant professor of political science at Baker University, for an unrelated project. We would like to thank Dr. Choate for the use of his interviews and for his help in preparing this project.

[1] Choate, Judd. "Torn and Frayed: The Challenges to and Stability of Congressional Norms in the 104th House." Unpublished Manuscript. 1997.

[2] Ripley, Randall. *Congress: Process and Policy*. (New York: WW Norton & Company, Inc.), 1988. p. 121.

[3] Ripley, 121.

[4] Ibid.

[5] Hinckley, Barbara. *The Seniority System in Congress*. (Bloomington: Indiana University Press), 1971, p. 3.

[6] Ibid., 111.

[7] Ibid., 112.

[8] Ibid., 113.

[9] Goodwin, George. "The Seniority System in Congress." In *Congressional Reform: Problems and Prospects*, ed. Joseph Clark. (New York: Thomas Y. Crowell Company), 1987. p. 187.

[10] Coyne, James and John Fund. *Cleaning House: America's Campaign for Term Limits*. (Washington DC: Regnery Gateway Press), 1992. p. 137.

[11] Carey, John M. *Term Limits and Legislative Representation*. (New York: Cambridge University Press), 1996.

[12] Kamber, Victor. *Giving Up On Democracy*. (Washington DC: Regnery Publishing, Inc.), 1995.

[13] Coyne and Fund, 1.

[14] Ibid., 120.

[15] Ibid.

[16] Ibid.

[17] Ibid., 123.

[18] Carey, 196.

[19] Kesler, 245.

[20] Ibid., 248.

[21] Kamber, 73.

[22] Ibid.

[23] Kamber, 74.

[24] Choate, 1997.

[25] Ibid.

Book Reviews:

The Fall of an Empire

Christina Bost

The Collapse of the Soviet Military
William E. Odom
523 pages
$35.00
Yale University Press

In the early 1980s, Reagan was President and leader of the "free" world. The "Evil Empire" had been a continuous menace for over forty years. A great arms race had been waged between the two superpowers. Some scholars claimed that it was a manifestation of the long historical tradition of the Russian Empire and its great imperialist army. Others explained it primarily as a reaction to U.S. military programs. During the early 80s, the Soviet Armed Forces (SAF) were the largest in the world in every respect—they possessed the quantitative advantage in manpower, number and variety of weapons, and in the size of their military-industrial base. It seemed that the Cold War would continue indefinitely upon the tenuous peace of amassed nuclear weapons deterrence. Ten years later, the Cold War was over. The SAF, the world's largest and arguably most powerful army, trickled away into oblivion. Their defeat did not come about as the result of a large foreign or domestic military confrontation. They were never formally disbanded. The SAF merely "went complaining but passively into the dustbin of history."[1]

The unusual demise of the Soviet military is explored by William E. Odom in his exceptionally informative book, The Collapse of the Soviet Military. Formerly a lieutenant general of the U.S. Army and the director of the National Security Agency, Odom is currently the director of national security studies at the Hudson Institute and is an adjunct professor of political science at Yale University. A lifetime of experience studying and interacting with the Soviet military has given Odom the opportunity to understand a great deal about one of the most elusive government bodies in recent history. Intelligence agents and scholars studying the Soviet military were required to piece together most of their information through the Soviet veil of secrecy, doubtful of whatever information they could locate. The bureaucratic inefficiency of the command economy kept even the Soviet government from knowing their own real capacities. Since the end of the Soviet Union in 1991, the SAF has become the army of the Commonwealth of Independent States. They are the "wild card" in Russian politics, having the power to greatly affect the transition to democracy and market economy. In order to understand their role in Russia today, Odom seeks to answer two questions: How and why the Soviet military collapsed.

In the first five chapters of the book, Odom provides the reader with background information about Soviet ideology and the structure of military bureaucracy. While he admits much of it may be dull for the impatient reader, it is particularly important for Western readers, who are probably unfamiliar with how Soviet ideology pervaded every level of political,

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economic and military consciousness, to understand the environment of the collapse.

Chapter one is especially interesting, as Odom describes how Marxism represents a theory of war— an aspect often overlooked. The development of the theory was already mature in Marx's early manuscript, The German Ideology, jointly written with Engels in 1836.[2] The 'alienation' of man from man, derived through private ownership of the means of production, leads to the formation of 'class interests' and is the motivation for 'class struggle.' Class struggle results in violent revolutions, making war a vehicle for change. Lenin went beyond Marx, "adding the concept of alliances between the working class and other oppressed classes in a common struggle against the ruling class."[3] Lenin foresaw the possibility of an alliance between the small working class and the revolutionary peasant classes, leading to the overthrow of the Russian czars. This revolution would be accompanied by revolutions among the European working class, who would join with the Russian working class to put down the peasantry, since they would inevitably show their bourgeois character after the revolution and demand private ownership of the land. This ideology was applied to class alliances on a global scale in Lenin's 1916 essay, "Imperialism: The Highest Form of Capitalism." The extension of these beliefs meant that the Soviets were ideologically required to support revolutions in colonial countries which, despite their bourgeois character, were the allies of the weak working classes within the colonial nations. These revolutions would lead to the eventual downfall of the imperialist powers and the establishment of a socialist world order.

Lenin joined Marxist philosophy with the ideas of the German military theorist Carl von Clausewitz. Clausewitz treats war as a policy instrument to achieve political goals. Lenin adopted Clausewitz's "paradoxical trinity" for characterizing the major components in a state's use of war.[4] The trinity consists of (1) national popular sentiment, (2) the "fog of war" (Clausewitz's terminology for chance and probability), (3) the attempt of government to use war rationally to achieve ends. In Clausewitz, Lenin found a theory that would combine the role of leadership with the vast and problematic nature of political struggle. Lenin saw the Bolshevik party's leadership rationally using war to achieve its ends, and saw the "fog of war" as people's lack of understanding of Marxist theory, which required international war to achieve its goals. Marxist-Leninist ideology required the Soviet to engage in wars in a variety of "theaters" across the world, helping to bring the world socialist struggle to power. This required a very large military deployed on a variety of fronts. While matching the U.S. in the arms race was a factor in the tremendous size of the Soviet military, a significant reason for its size and importance was ideologically based. The Marxist-Leninist ideology of war formed the dominant cognitive mentality through which generals perceived the rapid changes being thrust upon them by Gorbachev's perestroika reforms.

Chapter one is especially interesting, as Odom describes how Marxism represents a theory of war— an aspect often overlooked.

The body of the book describes ways in which Gorbachev's reforms inevitably led to the collapse of the SAF. While the economic problems of the USSR were recognized long before Gorbachev's rule, his glasnost and perestroika reforms were the first concrete steps towards a major systemic overhaul. While we may never know to what extent Gorbachev expected to

alter the Soviet system, it is generally assumed that he never intended them to lead to the end of the USSR. Gorbachev primarily sought economic reform, but it was impossible to isolate these reforms from political reforms due to the complexities between the Party and the bureaucracy. Internal corruption was rampant, and many factory managers did not find it to their personal advantage to follow the recommended reforms. Gorbachev attempted to introduce only limited aspects of the market economy to the system, a poor decision that further destabilized the economy.

The Soviet military was inextricably linked to these reforms, because somewhere between one-fifth and two-fifths of national income went to defense spending within the military-industrial complex. All of Gorbachev's attempts to limit government spending would include significant cuts within the military-industrial complex. Reducing spending there would also require changing the ideological stance toward military policy. It was simply too expensive for the USSR to engage in international "wars" such as the prolonged intervention in Afghanistan, that did little to spread the socialist revolution, and much to drain the Soviet economy. Under Gorbachev, the Soviet military acknowledged that U.S. troops in areas such as Korea actually benefited the USSR because of their stabilizing force in the region. The Soviet leaders had often spoken of "peaceful coexistence" but none believed in the doctrine before Gorbachev. Marxist-Leninist ideology of war was abandoned because it was no longer economically feasible or politically realistic.

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Gorbachev was a great advocate of international nuclear disarmament, and proposed unilateral force reductions before the UN in December 1988. He renounced the military's ideological view that the USSR was required to engage in international war, even nuclear, to promote a world socialist order. He also rejected the Western deterrence strategy as unacceptable, calling for unilateral force reductions in both conventional and nuclear arms. His foreign policy focused on arms reductions on all fronts, a policy that led him to fairly amicable relations with the West, if not at home.

Gorbachev's economic reforms and foreign policy agenda resulted in a system in which the military was no longer an integral part of ht Soviet ideological system. This radically affected the military leadership, who interpreted Gorbachev's actions as a direct threat to their well-being. Internal problems also plagued the military. It had become increasingly divided, especially along regional lines. An extremely abusive system of hazing junior officers took on regional aspects, as the more wealthy, urban families were able to keep their sons out of the draft. The military forces came increasingly from rural areas, consisting of poorer, ethnically mixed, and less educated status. Morale within the military was dismal, and the average soldier felt the economic woes of the USSR in poor food, negligible medical care, and miserable living conditions provided. They often were not paid. These problems still exist today, resulting in a continued low morale and internally divided body.

The Soviet military had become an anachronism. Gorbachev's reforms were the how and why of their demise. The SAF could not be maintained because they were too expensive. Gorbachev's economic reforms, ideological changes, and foreign policy agenda

effectively made the SAF a non-entity as they were no longer economically affordable, ideologically required, or a party of a Soviet foreign policy or international socialist revolution. Unfortunately, the military itself was not effectively reformed by Gorbachev, and has more or less continued in the same shape as the army of the CIS. There has been no true structural reform, no decisive ideological substitution, no turnover in leadership. Thus, the military has slowly languished, plagued with internal problems and without definitive purpose. Just about the only thing military leaders can agree upon is that they will defend the CIS against foreign invasion, a prospect which seems remote at this time. The Soviet military has collapsed, and Odom's book is an incredibly clear and detailed explanation of the collapse. Odom provides the necessary background information, illustrates the multitude of factors that played into the collapse along the way, and shows how the collapse affects Russia today. Odom's long experience and vast knowledge is well-evidenced in his highly informative book, allowing the reader to have a strong grasp of the how and why of the Soviet military's collapse.

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[1] Odom, The Collapse of the Soviet Military. The 'dustbin of history' is a phrase used by the revolutionary Leon Trotsky, who himself was 'swept' away from Soviet politics when assassinated in Mexico upon Stalin's orders.

[2] Ibid., p. 2.

[3] Ibid., p. 3.

[4] Ibid, p. 8.

A Fresh Look At the Bill of Rights

Josh Chafetz

The Bill of Rights: Creation and Reconstruction
by Akhil Reed Amar
Yale University Press, 1998
412 pp., $30.00

"The Bill of Rights stands as the high temple of our constitutional order – America's Parthenon – and yet we lack a clear view of it" (xi). After identifying this defect, Akhil Reed Amar, the Southmayd Professor of Law at Yale, sets out to correct it. He divides his work into two parts: the Creation of the Bill of Rights by the First Congress in 1789 and it's Reconstruction through the Fourteenth Amendment in 1868. Through painstaking research, and in lively, captivating prose, Professor Amar succeeds in refuting the common notion that there is a clear analytic difference between the original Constitution and the first ten amendments to it. That difference, he argues, did not arise until Reconstruction.

His statement that, "Individual and minority rights did constitute a motif of the Bill of Rights – but not the sole, or even the dominant, motif" (xii), summarizes the thesis of the first part of the work. Professor Amar demonstrates that the Bill of Rights, like the original Constitution, is instead primarily a set of structural ideas, at least as concerned with issues like federalism, preventing abuse of their offices by government officials (which he dubs "self-dealing"), and protecting the *political* rights of popular *majorities* as with protecting the *civil* rights of oppressed *minorities*. He points out that one possible source of this popular misconception about the meaning of the original Bill is the fact that our First Amendment appears to be primarily concerned with individual rights. Although he will go on to critically examine this appearance, he begins by noting that our First Amendment was not *the* first amendment. Originally, there were two ahead of it: the first dealt with Congressional representation, and the second, which was finally ratified in 1992 to become the Twenty-seventh Amendment, dealt with Congressional salaries. When one considers that the Ninth and Tenth Amendments are generally considered to be federalist in nature, then a new conception of the Bill of Rights as originally proposed emerges, one in which the eight central articles are framed on either side by four articles that are clearly structural in nature. As Professor Amar goes on to demonstrate in a careful clause-by-clause analysis, those eight central amendments were primarily structural, as well.

A few examples will help to illustrate this structural view of the Bill of Rights. In examining the assembly and petition clauses of the First Amendment, for instance, Amar utilizes an *intra*textual approach in order to understand the clauses in new and insightful ways. He points to the parallel between the right "of the people" to assemble and petition and the "We the People" that begins the Preamble to the Constitution as indicative of a notion that the assembly and petition rights are similar to Rousseau's conception of the right of the people to assemble as sovereign to change

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their government, just as the Founders themselves had done at Philadelphia in 1787. That is, First Amendment rights of assembly and petition are political rights of a sovereign majority, rather than civil rights of oppressed minorities. Amar supports his intratextual analyses with intertextual analysis, drawing supporting evidence from comments at state ratifying conventions and from comparisons with the state constitutions from which much of the language of the federal Constitution and Bill of Rights was drawn. He uses these two techniques in tandem quite skillfully to reach many of his most startling conclusions.

With these techniques, Professor Amar derives a fascinating states' rights reading of the First Amendment's religion clauses. He argues that the mandate that "Congress shall make no law *respecting* an establishment of religion" does not create an individual right to be free from established religion; it simply leaves that determination to the states: the clause only "prohibited the national legislature from interfering with, or trying to *dis*establish, churches established by state and local governments" (32). In support of this interpretation, Amar points to both the legislative history of the clause and early judicial interpretation of it, as well as the fact that the six states with established churches at the time of the Amendment's ratification were not forced to disestablish them.

An important theme running throughout the Creation section of *The Bill of Rights* is Professor Amar's emphasis on the Bill of Rights as a set of protections of the *political* rights of *majorities* against self-dealing government agents. Professor Amar points to the Second Amendment as preserving a structural safeguard whereby the states, with their own militias, could protect themselves against an overreaching federal government. He also points to juries as being "at the heart of the Bill of Rights" (83), noting that they are mentioned in no less than three of the first ten amendments, and he argues that the right to a jury trial was as much a participatory right of the jurors as it was a right of the accused. A jury of local citizens – often, one even possessing a right of "jury review" to declare a law unconstitutional – was seen as an effective check on judges, who were, after all, agents of the centralized government. Again, Amar presents the Bill of Rights as a series of rights protecting *the people* against *the government*, rather than *a person* against *the majority*. He continues in this vein, demonstrating in a clause-by-clause fashion that the Bill of Rights was, like the original Constitution, primarily structural and concerned with issues like federalism, separation of powers, the prevention of self-dealing by government officers, and the political rights of majorities.

How, then, did we come to think of the Bill of Rights as a countermajoritarian document protecting individual civil rights? That, argues Professor Amar, is a function of Reconstruction – specifically, the second sentence of the first section of the Fourteenth Amendment: "No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws." Amar points out that the Slave Power in the South was guilty of violating many civil rights, not just of slaves, but of free whites and blacks too. Slavery required a host of accompanying oppressive

> *"Individual and minority rights did constitute a motif of the Bill of Rights - but not the sole, or even the dominant, motif"*

practices in order to perpetuate itself, and the Supreme Court, relying on the precedent of the 1833 case *Barron v. Baltimore*, had steadfastly refused to apply the Bill of Rights as a protection of individual liberties against the states. Enter the Fourteenth Amendment.

The question then shifted to one of how and what resulted from the interaction of the Fourteenth Amendment and the Bill of Rights. Professor Amar examines models proposed by three of the greatest legal minds of the twentieth-century. Justice Felix Frankfurter argued that the Fourteenth Amendment "requires only that states honor basic principles of fundamental fairness and ordered liberty" (139). Justice Hugo Black proposed a mechanical – or total – incorporation of the Bill of Rights into the Fourteenth Amendment. That is, in Justice Black's model, the Fourteenth Amendment made all of the provisions of the Bill of Rights automatically applicable against the states. Justice William Brennan proposed a model of selective incorporation: the Fourteenth Amendment incorporates only those rights in the Bill of Rights that are deemed "fundamental" in a right-by-right analysis. Professor Amar points out that each of these is fundamentally flawed: the wording of the Fourteenth Amendment clearly points towards some sort of incorporation, but total incorporation cannot work in light of recognition that most of the clauses in the Bill of Rights have substantial structural aspects that apply specifically to the *federal* government. Justice Brennan's selective incorporation provides no guidelines on how to determine what rights are "fundamental," and thus is not very helpful.

This book is a must-read for anyone interested enough in American politics to be reading this magazine.

On the other hand, Professor Amar also sees good points in each of the three methods, and he offers his own synthesis, which he calls "refined incorporation": "Instead of asking whether a given provision is fundamental, as Brennan suggests, we must ask whether it is a personal privilege – that is, a private right – of individual citizens, rather than a right of states or the public at large" (221). He then proceeds to reexamine the Bill of Rights, demonstrating that incorporation subtly – but often importantly – alters the meaning of almost every clause. To use the example of the First Amendment again, Amar points out that the expression clauses are easy to incorporate, but in the process they become countermajoritarian civil rights, instead of majoritarian political rights. They were extended to protect people like Harriet Beecher Stowe from an entire Southern society that hated *Uncle Tom's Cabin*, whereas before they had primarily protected, for example, "a relatively popular publisher saying relatively popular things critical of less popular government officials" (236). The establishment clause came to mean that no established churches were to be permitted at all. The Second Amendment was transformed from a political right to maintain a militia to prevent the centralized government from becoming tyrannical into a civil right "with individual freedmen keeping guns at home to ward off Klansmen and other ruffians" (259). The right to a jury trial ceased to be a right of society as a whole and became a right of the accused alone, as local juries were increasingly seen as tools of an oppressive majority from which countermajoritarian federal judges were the only deliverance. In short, what had been a bill of majoritarian political rights was transformed by the Fourteenth Amendment into the bill of

individual civil rights that we know today.

In the end, to what does all of this amount? Professor Amar candidly admits that he has "told a tale that, at the end of the day, ends up supporting most of today's precedent about the Bill of Rights" (307). However, as with any good tale, it is not the ending that counts so much as the story itself. Professor Amar's tale is thoroughly researched and quite well-told. The writing is accessible and lively, at times bordering on the playful, such as when he announces that "As a lover of mercy . . . I shall resist the temptation to present all the evidence that anti-incorporationists have overlooked or distorted" (186), or when he introduces a long quote from a scholar with whom he disagrees with "Once again, I shall give the man some rope" (198). More importantly, however, the tale is important. At the very least, it teaches us that we have John Bingham, the main author of Section I of the Fourteenth Amendment, to thank for *our* Bill of Rights at least as much as James Madison. Moreover, the fact that we have generally reached the correct conclusions with incorrect – or at least incomplete – methods does not diminish the value of knowing the correct methods of Constitutional interpretation.

This reviewer's only complaint is the merely cursory treatment that Professor Amar affords the Ninth Amendment. He dismisses this amendment as almost wholly federalist, and writes that the question of its incorporation "does not much matter" (280). Yet it seems that the possibility of incorporating the Ninth Amendment deserves more than the three pages that Amar devotes to it. After all, a reconstructed Ninth Amendment, in which the rights "retained by the people" refer to individual civil rights, rather than majoritarian political rights, might provide a sound constitutional basis for rights that currently fall within the paradoxical and much disputed doctrine of substantive due process. This omission, however, is trivial compared to the value of the book as a whole.

It is rare that a single work can so thoroughly and decisively change the way we look at a document as central to our common political life as the Bill of Rights. With *The Bill of Rights: Creation and Reconstruction*, Professor Amar has done just that. This book is a must-read for anyone interested enough in American politics to be reading this magazine.

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SOUND BITES

"I voted against the Republicans for being such pinheads, for not getting down to issues. It's a dangerous time in this country when people start prying into peoples' private lives and not taking care of business."

— **Judy Malone-Stein**, quoted in the 4 November 1998 *New York Times*

"If you want to know how competitive this family is, consider this: When the patriarch Bush was told by a friend yesterday that I was writing a column proposing a Bush-Bush ticket, the former President instantly replied: 'I'm not sure I want to run again.'"

— **Maureen Dowd**, in her 4 November 1998 *New York Times* column

"I'm Jesse the Mind now."

— **Jesse "the Body" Ventura**, former professional wrestler elected Governor of Minnesota, reported in the 5 November 1998 *New York Times*

"They're cannibals."

— **Newt Gingrich** on members of his own party in announcing his resignation from the Speakership and the House, quoted in the 7 November 1998 *New York Times*

"Let me just be very clear that the Republican Party will select a nominee that can beat Bill Clinton."

—**Dan Quayle** on the 2000 Presidential elections, quoted in the November 1998 issue of *Reason Magazine*

"The president was overheard to comment last night that he's quite confident that he will be the recipient of this year's barbecue."

—Whitehouse spokesman **Joe Lockhart**, on the bet between President Clinton and Vice President Gore of 5 pounds of barbecue on the outcome of this year's Tennessee-Arkansas football game, quoted on www.excite.com.

"Tell anybody who asks that I expect to serve my full term."

—Sen. **Strom Thurmond**, on the term ending in 2003, at which point he will be just over 100 years of age, quoted in the 13 November 1998 *New York Times*

"I urge you to call your elected representatives TODAY and tell them, in no uncertain terms . . . that we, the people, don't want to hear another word about this Washington sex scandal. Or, if we HAVE to hear more, how about some new episodes?"

—**Dave Barry**, in his 30 October 1998 *Miami Herald* column

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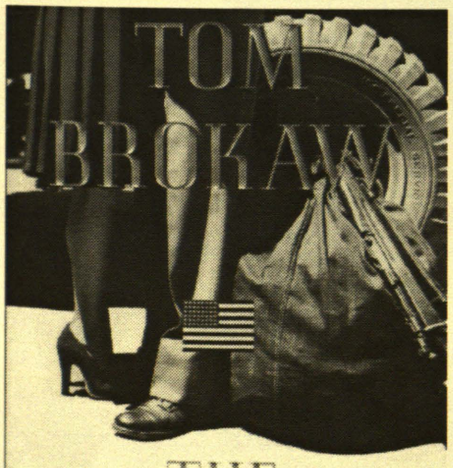

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